

SPECIAL AMMUNITION AND WEAPON SYSTEMS (SAWS) SAFETY STATEMENT OF WORK (SOW)

General Safety Requirements

1.0 Objective

The Contractor shall comply with and flow down safety requirements to all ammunition & explosive (A&E) subcontractors and sub-tier contractors who supply and deliver Special Ammunition and Weapon Systems (SAWS) listed in Section J, Attachment 0001 SAWS Federal Supply Classification (FSC) Item List.

2.0 Applicable Documents

The Contractor shall use the latest versions as of Contract award date, of the following documents to the extent specified herein as a guide for this Special Ammunition and Weapon Systems (SAWS) Safety Statement of Work (SOW). The Contractor shall comply with all Federal Acquisition Regulations (FAR) and Defense Federal Acquisition Regulation Supplement (DFARS) clauses incorporated by reference. Section J, List of Attachments and Exhibit A, Contract Data Requirements List (CDRL), are incorporated herein by reference and constitute a part this Contract.

- a. Defense Federal Acquisition Regulation Supplement (DFARS) 252.223-7002 Safety Precautions for Ammunition and Explosives
- b. Defense Federal Acquisition Regulation (DFARS) 252.223-7003 Change in Place of Performance – Ammunition and Explosives
- c. Defense Federal Acquisition Regulation Supplement (DFARS) Procedures, Guidance and Information (PGI) 223.370 Safety Precautions for Ammunition and Explosives
- d. Department of Defense (DoD) Manual 4145.26 DOD Contractor's Safety Manual for Ammunition and Explosives, dated 13 March 2008 Incorporating Change 2, 31 August 2018

3.0 Requirements

- 3.1 The Contractor shall identify and comply with all applicable local, national and international laws, ordinances, regulations, and codes in the relevant jurisdiction of the place of performance of where work is to be performed under this SAWS Safety SOW. This includes the responsibility of obtaining all necessary licenses and permits. The requirements of this SAWS Safety SOW are in addition to, and do not supersede, these legal obligations.

3.2 The Contractor is required to provide identification of all suppliers at all sub-tier levels, including all Task Orders and Purchase Orders in order to complete a Department of Defense (DoD) Pre-Award Safety Survey (PASS) Inspection at all Contractor designed Places of Performance involving A&E or touch labor of A&E to the Procuring Contracting Officer (PCO) and the Administrative Contracting Officer (ACO). Contractors are required to flow down this SAWS Safety SOW to all Contractors, including Prime Contractors, subcontractors, and suppliers at all sub-tier levels. The Contractor shall establish and implement management controls to ensure all tiers of A&E Contractors comply with this SAWS Safety SOW.

3.3 Disclosure and Government (USG) Access – A&E Activities

3.3.1 The Contractor shall notify the USG of all Contractors, subcontractors, and sub-tier contractors performing work involving A&E, or other energetic materials under this Contract, including those performing direct, “touch labor”, activities associated with A&E or energetics. The notification shall identify the entity, Place of Performance, and general scope of A&E or energetic work. Upon receipt of this information, DCMA Contract Safety will coordinate with the PCO and Program Office to determine whether USG inspection access or additional oversight is required.

3.3.2 If inspection access is determined to be necessary, the Contractor shall provide the USG with reasonable access to applicable facilities, work areas, ingress and egress routes, and relevant safety documentation to support compliance evaluation.

3.4 The Contractor shall implement and maintain an effective demonstratable safety program that shall be made available to the USG and encompass the following minimum requirements:

3.4.1 Comply with the requirements of this SAWS Safety SOW, Section 2.0 documents along with the safety requirements contained within the Contract.

3.4.2 Designate a qualified individual to administer and implement the safety program in Section 3.4.

3.4.3 Provide the USG access to facilities and safety program documentation.

3.4.4 The Contractor shall provide safety awareness, site ingress and egress along with emergency egress training to USG personnel.

3.4.5 Develop and implement a plan that demonstrates protective safety measures for USG personnel performing A&E activities related to inspections and surveillance, including site ingress and egress.

3.4.6 Accident Mishap Reporting

3.4.6.1 Contractors must document and report all A&E related accident mishaps to the cognizant Defense Contract Management Agency (DCMA), ACO, PCO and Product Lead Special Ammunition and Weapon Systems (PdL SAWS) Office identifying at the minimum:

- a. Contract and Delivery Order Number(s)
- b. Contractor name and location
- c. Contact information of the person submitting the report
- d. Date, time, location of accident and type of accident (explosion, fire, etc)
- e. Material or Item(s) involved
- f. Short accident narrative with probable cause(s)
- g. Number of fatalities, injuries and degree of injuries
- h. Description of property damage
- i. If known, quantity of material involved (weight, unit, rounds)
- j. Identification of any negative impacts to Contractor production schedule, USG surveillance activities and delivery schedule

3.4.6.2 Major and Minor accident mishaps are defined as:

3.4.6.2.1 Major

One (1) or more fatalities, five (5) or more non-fatal injuries, delay in delivery schedule exceeding 24 hours and any accident that may degrade operational or production capability or is likely to arouse media interest.

3.4.6.2.2 Minor

All other A&E related accident mishaps that do not meet the definition of Major in Section 3.3.6.2.1.

3.4.6.3 Accident mishap reporting timelines by telephone, with email notification of event are as follows:

3.4.6.3.1 Major Accident Mishap

As soon as possible, no later than eight (8) hours after the incident.

3.4.6.3.2 Minor Accident Mishap

Three (3) Days

3.4.7 Records, maintains, and makes available for review, until final delivery under this Contract, all Contract related safety inspections and oversight,

safety records, and hazard analyses documentation used to determine compliance to mandatory safety requirements.

4.0 Detailed Safety Requirements

4.1 The Contractor shall comply with and fully implement the requirement DFARS 252.223-7002, Safety Precautions for Ammunition and Explosives, and DFARS 252.223-7003, Change in Place of Performance – Ammunition and Explosives, as incorporated into this Contract.

4.1.1 The Contractor shall ensure these clauses are properly flowed down to all subcontractors and sub-tier contractors performing work involving A&E or supporting A&E operations under this Contract.

4.1.2 The Contractor shall provide the USG with a safe and healthful work and inspection environment at all facilities where contract performance or USG inspections occur. This requirement includes, but is not limited to:

- a. All A&E operational areas
- b. All designated USG inspection locations
- c. All ingress and egress route to and from such locations
- d. Contractor-controlled property associated with contract performance

4.1.3 Prior to use by the USG, a qualified Contractor Safety Professional shall verify that each USG inspection location and associated ingress and egress routes meet minimum safety requirements in accordance with applicable Federal, DoD, host-nation, and contract-specific safety standards.

4.1.4 In accordance with DFARS 252.223-7003, Change in Place of Performance – Ammunition and Explosives, the Contractor shall not change the Place of Performance for A&E work without prior written authorization from the PCO. Any proposed changes shall be submitted in sufficient detail to permit safety evaluation and approval prior to implementation.

4.2 The Contractor shall provide the USG with a safe and healthy work and inspection environment which includes ingress and egress of the Contractor's facility and property. Prior to use by the USG, a Contractor Safety Professional must verify each USG inspection location along with ingress and egress routes to assure the minimum safety requirements have been met.

4.3 In accordance with Section C, Statement of Work, the Contractor shall submit and maintain current A&E Site Plans, Explosive Safety Site Plans (ESSP), for all DoD GSI locations along with ingress and egress routes as addressed below.

- 4.3.1 The Contractor or subcontractor shall establish, maintain and monitor A&E net explosive weights (NEWs) and corresponding quantity distance (QD) separation distances between the identified GSI locations and routes, surrounding A&E locations and operations along with the general public. A minimum safety zone of at least inhabited building distance (IBD) for GSI locations and at least public transportation route distance (PTRD) for site ingress and egress. The IBD and PTRD separation distances will be based on the applicable hazard division (HD) QD tables from DoD 4145.26M, Incorporating Change 2.
- 4.3.2 If the QD separation requirements are noncompliant to the applicable standard(s) in paragraph 2.2.1, the A&E Site Plan will include the Contractor's alternate risk mitigation plan to reduce any exposure to explosion risks during the GSI. Individual maximum credible event (MCE) data analysis or equivalent level of protection data analysis may also be considered when QD separation is limited. Alternative risk mitigation plans may include, but are not limited to, temporary cessation or shutdown of operations during GSI, execute GSI during nonoperational hours, removal of explosive materials from assembly line during GSI or identification of alternate location for the GSI. The alternate risk mitigation plan may contain details to include building design, A&E spacing, A&E configuration, terrain, barricades or barriers that reduce the risk of exposure, such analysis shall be included in the A&E Site Plan for USG assessment.
- 4.3.3 When increasing the existing net explosive weight for quantity distance (NEWQD) or MCE for any A&E facility improvement/modification that can negatively impinge upon GSI inspection location areas/arcs, the Contractor shall notify and provide an updated Site Plan in accordance with Section C, Statement of Work.
- 4.3.4 Unless identified and documented in the Contractors submitted A&E Site Plan, GSI locations shall not be utilized to store non-DoD related A&E items, products or materials.
- 4.3.5 Contractor GSI sites that do not meet this Safety SOW shall be subject to withdrawal of USG personnel and require A&E materials to be relocated to an approved location for GSI activities.
- 4.4 The inability of the Contractor to meet the minimum safety requirements at the time of GSI verification shall not relieve the Contractor from meeting their contractual requirements.
- 4.5 Nothing in this SOW, nor any USG action or failure to act in surveillance of this Contract, shall relieve the Contractor of its responsibility for the safety of USG personnel and property.

4.6 If the USG acts or fails to act in surveillance or enforcement of the safety requirements of this Contract, this shall not impose any liability on the USG.